

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

POLICE OFFICER JOHN DOE #1 3RD SHIFT 120 PT.
POLICE OFFICER JOHN DOE #2 3RD SHIFT 120 PT.

(In the space above enter the full name(s) of the plaintiff(s).)

v.

COMPLAINT

under the

Civil Rights Act, 42 U.S.C. § 1983

Jury Trial: Yes ☒ No ☐
(check one)

Defendant No. 1 POLICE OFFICER JOHN DOE #1
3RD SHIFT 4-8-10 120 PRECINT
Defendant No. 2 POLICE OFFICER JOHN DOE #2
3RD SHIFT 4-8-10 120 PRECINT
Defendant No. 3 _____
Defendant No. 4 _____
Defendant No. 5 _____

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. No addresses should be included here.)

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I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff Name STEVEN PANKAY
ID # 541-10-00660
Current Institution OBCC, 1600 HAZEN ST.
Address EAST ELMHURST N.Y. 11370
3 WEST

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1 Name JOHN DOE #1 Shield # _____
 Where Currently Employed 120 PRECINCT 3TOLL SHIFT
 Address 78 RICHMOND TERRACE
S.I. N.Y.

Defendant No. 2 Name JOHN DOE #2 Shield # _____
 Where Currently Employed 120 PRECINCT 3TOLL SHIFT
 Address 78 RICHMOND TERRACE
S.I. N.Y.

Defendant No. 3 Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

Defendant No. 4 Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

Defendant No. 5 Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not give any legal arguments or cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

- A. In what institution did the events giving rise to your claim(s) occur? 120 PRECINCT
STATEN ISLAND N.Y.
- B. Where in the institution did the events giving rise to your claim(s) occur? 120 PRECINCT
BULL PENS
- C. What date and approximate time did the events giving rise to your claim(s) occur? 4-8-10
BETWEEN THE TIME OF 10³⁰pm TO 11pm

D. Facts: ON 4-8-10 I WAS ARRESTED IN 185 PARKHILL AVE. FOR TRESSPASSING, AT THE TIME OF ARREST MY RIBS WERE BROKEN, I INFORMED THE TWO ARRESTING OFFICERS OF THIS, THEY TOOK ME TO THE 120 PT. STATEN ISLAND, LOCATED AT 78 RICHMOND TERR. I INFORMED THE TWO ARRESTING OFFICERS THAT I WANTED TO GO TO THE HOSPITAL, THEY SAID THAT I WOULD BE ABLE TO GO SO I WAITED THIS WAS ABOUT 10³⁰ PM, AFTER ABOUT TWO TO THREE HOURS OF BEING IN THE HOLDING PENS I CALLED FOR THE POLICE OFFICER TO TAKE ME TO THE HOSPITAL, BUT NO ONE CAME, I WAS THEN LEFT IN THE HOLDING PEN FOR (4) DAYS, I DID NOT GET TO GO TO COURT UNTIL 11-11-10 WHICH I WAS ARRESTED ON 4-8-10.

III. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received. I SUSTAINED THE INJURIES BEFORE MY ARREST AND ASKED FOR MEDICAL ATTENTION, AND WAS DENIED MEDICAL ATTENTION AND LEFT IN THE PRECINCT FOR (4) DAYS.

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act of 1995, 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?
Yes ☐ No ☒

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s). 120 PRECENT HOUSE T8 RICHMOND

TERRACE S. I. N. Y.

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes ☒ No ☐ Do Not Know ☒

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes ☐ No ☒ Do Not Know ☐

If YES, which claim(s)? _____

D. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose not cover some of your claim(s)?

Yes ☐ No ☒ Do Not Know ☒

If YES, which claim(s)? _____

E. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes ☐ No ☒

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes ☐ No ☒

F. If you did file a grievance, about the events described in this complaint, where did you file the grievance? _____

1. Which claim(s) in this complaint did you grieve? _____

2. What was the result, if any? _____

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process. _____

G. If you did not file a grievance, did you inform any officials of your claim(s)?

Yes ☒ No ☐

1. If YES, whom did you inform and when did you inform them? CIVILIAN
COMPLAINT BOARD.

2. If NO, why not?

I. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies.

Note. You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. **Relief:**

State what you want the court to do for you. I WOULD LIKE FOR THE
COURT TO GRANT ME MONITARY DAMAGES
IN THE AMOUNT OF 150,000 FOR PAIN AND
SUFFERING.

VI. **Previous lawsuits:**

A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

Yes ☐ No ☒

B. If your answer to A is YES, describe each lawsuit in questions 1 through 7 on the next page. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to this previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (for example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

D. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?
Yes _____ No ☒

On
other
claims

E. If your answer to D is YES, describe each lawsuit in questions 1 through 7 on the next page. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to this previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit: _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (for example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

Signed this 1st day of May, 2010. I declare under penalty of perjury that the foregoing is true and correct.

Signature of Plaintiff

Inmate Number

Mailing address

Steven Pankey
541-10-00600
O BCC
1600 HAZEN ST.
EAST ELMHURST, NY 11370
3 WEST

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 1st day of May, 2010, I will deliver this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff:

Steven Pankey